

C.A. No. 26-10936

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION AND CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

On Petition for Review of an Order of the
United States Securities and Exchange Commission
SEC Release No. 34-105003

**AMENDED CERTIFICATE OF INTERESTED PERSONS AND
AMENDED CORPORATE DISCLOSURE STATEMENT**

Paul E. Greenwalt III
Michael K. Molzberger
ARENTFOX SCHIFF LLP
233 S. Wacker Dr., Suite 7100
Chicago, IL 60606
Phone: (312) 258-5500
paul.greenwalt@afslaw.com
michael.molzberger@afslaw.com

J. Maxwell Heckendorn
ARENTFOX SCHIFF LLP
1301 Avenue of the Americas, 42nd Floor
New York, NY 10019
max.heckendorn@afslaw.com

*Counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2
Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange,
Inc.*

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMENDED CERTIFICATE OF INTERESTED PERSONS

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, the undersigned counsel of record for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc., (the “Cboe Exchanges”) certifies that the persons and entities below are currently known to have an interest in the outcome of this case. This amendment is to remove The Vanguard Group, Inc. because that entity no longer owns more than 10% of Cboe Global Markets, Inc.’s shares.

1. **24X National Exchanger LLC**, Member and participant of CAT LLC
2. **American Securities Association**, Petitioner.
3. **ArentFox Schiff LLP**, Counsel for the Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
4. **Ballard Spahr LLP**, counsel for Intervenor The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; and Nasdaq Texas, LLC.
5. **Berman, Ari M.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.

6. **BOX Exchange LLC**, Member and participant of CAT LLC.
7. **Boyle, Gregory M.**, Counsel for CAT LLC.
8. **Cboe BYX Exchange, Inc.**, Intervenor, Member and participant of CAT LLC.
9. **Cboe BZX Exchange, Inc.**, Intervenor, Member and participant of CAT LLC.
10. **Cboe C2 Exchange, Inc.**, Intervenor, Member and participant of CAT LLC.
11. **Cboe EDGA Exchange, Inc.**, Intervenor, Member and participant of CAT LLC.
12. **Cboe EDGX Exchange, Inc.**, Intervenor, Member and participant of CAT LLC.
13. **Cboe Exchange, Inc.**, Intervenor, Member and participant of CAT LLC.
14. **Cboe Global Markets, Inc.** (BATS: CBOE), Indirect Owner of 10% or Greater Interest in CAT LLC, and Direct or Indirect Parent Company of Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.
15. **Citadel Securities GP LLC**, Parent company of Petitioner.

16. **Citadel Securities LLC**, Petitioner.
17. **Connolly, J. Michael**, Counsel of record for Petitioner American Securities Association.
18. **Consolidated Audit Trail, LLC (“CAT LLC”)**, a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan.
19. **Consovoy McCarthy PLLC**, Counsel for Petitioner American Securities Association.
20. **Deutsch, Elizabeth B.**, Counsel for CAT LLC.
21. **Dinkel, Christopher S.**, Counsel for Petitioner Citadel Securities LLC.
22. **Financial Industry Regulatory Authority, Inc.**, Member and participant of CAT LLC.
23. **Francisco, Noel J.**, Counsel of record for Petitioner Citadel Securities LLC.
24. **Gershengorn, Ian Heath**, Counsel of Record for CAT LLC.
25. **Greenwalt, Paul, III**, ArentFox Schiff, Counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.

26. **Heckendorn, J. Maxwell**, ArentFox Schiff, Counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
27. **Investors Exchange LLC**, Member and participant of CAT LLC.
28. **Jenner & Block LLP**, Counsel for CAT LLC.
29. **Jones Day**, Counsel for Petitioner Citadel Securities LLC.
30. **Kastenbergh, Stephen J.**, Ballard Spahr LLP, counsel for Intervenors The Nasdaq Stock Market, LLC, Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX, LLC, and Nasdaq Texas, LLC.
31. **Lantieri III, Paul**, Ballard Spahr LLP, counsel for Intervenors The Nasdaq Stock Market, LLC, Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX, LLC, and Nasdaq Texas, LLC.
32. **Long-Term Stock Exchange, Inc.**, Member and participant of CAT LLC.
33. **Lucas, Brinton**, Counsel for Petitioner Citadel Securities LLC.
34. **MacLean, Matthew J.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors
35. **Madigan, Sarah M.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
36. **Marshall, Jonathan J.**, Counsel for CAT LLC.

37. **Matro, Daniel**, counsel for Respondent U.S. Securities and Exchange Commission.
38. **MEMX LLC**, Member and participant of CAT LLC.
39. **Miami International Securities Exchange LLC**, Member and participant of CAT LLC.
40. **MIAX Emerald, LLC**, Member and participant of CAT LLC.
41. **MIAX PEARL, LLC**, Member and participant of CAT LLC.
42. **MIAX Sapphire, LLC**, Member and participant of CAT LLC.
43. **Molzberger, Michael**, ArentFox Schiff, counsel for Intervenorors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
44. **Montgomery, Sophia W.**, Counsel for CAT LLC.
45. **Nasdaq GEMX, LLC**, Intervenor, Member and participant of CAT LLC.
46. **Nasdaq ISE, LLC**, Intervenor, Member and participant of CAT LLC.
47. **Nasdaq MRX, LLC**, Intervenor, Member and participant of CAT LLC.
48. **Nasdaq PHLX LLC**, Intervenor, Member and participant of CAT LLC.

49. **Nasdaq Texas, LLC**, Intervenor, Member and participant of CAT LLC.
50. **New York Stock Exchange LLC**, Intervenor, Member and participant of CAT LLC.
51. **NYSE American LLC**, Intervenor, Member and participant of CAT LLC.
52. **NYSE Arca, Inc.**, Intervenor, Member and participant of CAT LLC.
53. **NYSE National, Inc.**, Intervenor, Member and participant of CAT LLC.
54. **NYSE Texas, Inc.**, Intervenor, Member and participant of CAT LLC.
55. **Oliwenstein, David**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor
56. **Phillips, David**, Counsel for Petitioner Citadel Securities LLC.
57. **Pillsbury Winthrop Shaw Pittman LLP**, counsel for NYSE Intervenor.
58. **Rabbitt, Brian C.**, Counsel for Petitioner Citadel Securities LLC.
59. **Templin, Hannah**, Counsel for Petitioner Citadel Securities LLC.
60. **The Nasdaq Stock Market LLC**, Member and participant of CAT LLC.
61. **United States Securities and Exchange Commission**, Respondent.

62. **Warnke, Anne S.**, Counsel for CAT LLC.

Dated: May 4, 2026

Respectfully submitted,

/s/ Paul E. Greenwalt III

Paul E. Greenwalt III

Michael K. Molzberger

ARENTFOX SCHIFF LLP

233 S. Wacker Dr., Suite 7100

Chicago, IL 60606

(312) 258-5702

paul.greenwalt@afslaw.com

michael.molzberger@afslaw.com

J. Maxwell Heckendorn

ARENTFOX SCHIFF LLP

1301 Avenue of the Americas,

42nd Floor

New York, NY 10019

max.heckendorn@afslaw.com

*Counsel for Intervenors Cboe BYX
Exchange, Inc., Cboe BZX Exchange,
Inc., Cboe C2 Exchange, Inc. Cboe
EDGA Exchange, Inc., Cboe EDGX
Exchange, Inc., and Cboe Exchange,
Inc*

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMENDED CORPORATE DISCLOSURE STATEMENT

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-2, the undersigned counsel of record certifies that Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc. are each a direct or indirect wholly-owned subsidiary of Cboe Global Markets, Inc. (ticker symbol “CBOE”), a public company. Cboe Global Markets, Inc. has no parent corporation. No publicly held corporation owns 10% or more of Cboe Global Markets, Inc.’s shares.

Dated: May 4, 2026

Respectfully submitted,

/s/ Paul E. Greenwalt III

Paul E. Greenwalt III

Michael K. Molzberger

ARENTFOX SCHIFF LLP

233 S. Wacker Dr., Suite 7100

Chicago, IL 60606

(312) 258-5702

paul.greenwalt@afslaw.com

michael.molzberger@afslaw.com

American Securities Association and Citadel Securities LLC v.

United States Securities and Exchange Commission,

C.A. No. 26-10936

J. Maxwell Heckendorn
ARENTFOX SCHIFF LLP
1301 Avenue of the Americas,
42nd Floor
New York, NY 10019
max.heckendorn@afslaw.com

*Counsel for Intervenors Cboe BYX
Exchange, Inc., Cboe BZX Exchange,
Inc., Cboe C2 Exchange, Inc. Cboe
EDGA Exchange, Inc., Cboe EDGX
Exchange, Inc., and Cboe Exchange,
Inc.*